



February 19, 2026

ENGROSSED

SENATE BILL No. 285

DIGEST OF SB 285 (Updated February 18, 2026 4:10 pm - DI 106)

Citations Affected: IC 5-20; IC 10-11; IC 12-26; IC 35-52; IC 36-1.

Synopsis: Housing matters. Requires the Indiana housing and community development authority (authority) to establish eligibility criteria for a potential recipient to be included in the authority's application for funding under the federal continuum of care program (program). Requires a recipient of program funding to submit an annual report to the authority. Defines "gravely disabled" for purposes of involuntary commitment. Prohibits an individual from camping, sleeping, or using for long term shelter land owned by the state or a political subdivision, unless the land has been authorized for that use by law. Requires a law enforcement officer who discovers a person unlawfully using land owned by the state or a political subdivision for unlawful camping, sleeping, or long term shelter to determine if there are reasonable grounds for an emergency detention of the person, and, if reasonable grounds exist, to proceed under the emergency detention
(Continued next page)

Effective: July 1, 2026.

Carrasco, Koch, Baldwin

(HOUSE SPONSORS — ZIMMERMAN, MILLER D)

January 12, 2026, read first time and referred to Committee on Judiciary.
January 15, 2026, amended, reported favorably — Do Pass.
January 26, 2026, read second time, amended, ordered engrossed.
January 27, 2026, engrossed.
January 28, 2026, read third time, passed. Yeas 29, nays 19.

HOUSE ACTION

February 2, 2026, read first time and referred to Committee on Courts and Criminal Code.
February 19, 2026, amended, reported — Do Pass.

ES 285—LS 7097/DI 147



procedure and not the criminal law. Provides that, if there are not grounds for emergency detention and certain elements are met, a person who knowingly or intentionally uses land owned by the state or a political subdivision for unauthorized camping, sleeping, or long term shelter commits a Class C misdemeanor. Prohibits a political subdivision from adopting or enforcing any policy that prohibits or discourages the enforcement of any order or ordinance prohibiting public camping, sleeping, or other obstruction of a sidewalk. Requires: (1) each local law enforcement agency to provide to the state police department the number of arrests made for violations of the prohibition of street camping; and (2) the state police department to provide this information to the authority. Specifies that the bill does not prohibit a policy, program, or order of a political subdivision that encourages a diversion program or encourages or requires providing housing or shelter in lieu of a citation or arrest. Makes technical corrections.



February 19, 2026

Second Regular Session of the 124th General Assembly (2026)

PRINTING CODE. Amendments: Whenever an existing statute (or a section of the Indiana Constitution) is being amended, the text of the existing provision will appear in this style type, additions will appear in **this style type**, and deletions will appear in ~~this style type~~.

Additions: Whenever a new statutory provision is being enacted (or a new constitutional provision adopted), the text of the new provision will appear in **this style type**. Also, the word **NEW** will appear in that style type in the introductory clause of each SECTION that adds a new provision to the Indiana Code or the Indiana Constitution.

Conflict reconciliation: Text in a statute in *this style type* or ~~this style type~~ reconciles conflicts between statutes enacted by the 2025 Regular Session of the General Assembly.

ENGROSSED SENATE BILL No. 285

A BILL FOR AN ACT to amend the Indiana Code concerning local government.

Be it enacted by the General Assembly of the State of Indiana:

1 SECTION 1. IC 5-20-1-28 IS ADDED TO THE INDIANA CODE
2 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
3 1, 2026]: **Sec. 28. (a) The authority shall establish eligibility**
4 **criteria, in accordance with federal law, for a potential recipient to**
5 **be included in the authority's application for funding under the**
6 **federal Continuum of Care program (24 CFR 578).**

7 **(b) On an annual basis and in a manner prescribed by the**
8 **authority, each recipient of funds distributed by the authority**
9 **under the federal Continuum of Care program (24 CFR 578) shall**
10 **submit a report to the authority summarizing:**

11 **(1) information concerning the recipient's efforts to address**
12 **unsheltered homelessness; and**

13 **(2) whether the recipient reduced unsheltered homelessness.**

14 SECTION 2. IC 10-11-2-36 IS ADDED TO THE INDIANA CODE
15 AS A **NEW** SECTION TO READ AS FOLLOWS [EFFECTIVE JULY
16 1, 2026]: **Sec. 36. Not later than July 1 of each year, the state police**
17 **department shall provide to the Indiana housing and community**

ES 285—LS 7097/DI 147



development authority the information received under
IC 36-1-31.5-4.

SECTION 3. IC 12-26-1-1, AS AMENDED BY P.L.205-2023,
SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE
JULY 1, 2026]: Sec. 1. (a) As used in this section, "gravely
disabled" means a condition in which an individual, as a result of
mental illness, is in danger of coming to harm because the
individual:

(1) is unable to provide for the individual's food, clothing,
shelter, or other essential human needs; or

(2) has a substantial impairment or an obvious deterioration
of judgment, reasoning, or behavior that results in the
individual being unable to function independently; or

(3) lacks a fixed, regular, and adequate shelter, resulting in
the individual remaining outdoors in places not designed for
or ordinarily used for sleeping during weather conditions that
are likely to result in death or serious physical injury, if:

(A) the individual has refused transportation to a shelter
or mental health service provider; and

(B) a shelter or mental health service provider was
reasonably offered and available.

(b) An individual who is mentally ill and either dangerous or
gravely disabled may be involuntarily detained or committed under any
of the following statutes:

(1) IC 12-26-5 (emergency detention).

(2) IC 12-26-6 (temporary commitment).

(3) IC 12-26-7 (regular commitment).

SECTION 4. IC 35-52-36-0.5 IS ADDED TO THE INDIANA
CODE AS A NEW SECTION TO READ AS FOLLOWS
[EFFECTIVE JULY 1, 2026]: Sec. 0.5. IC 36-1-31.5-1 defines a
crime concerning the unauthorized use of land owned by the state
or a political subdivision to camp, sleep, or use for long term
shelter.

SECTION 5. IC 36-1-31.5 IS ADDED TO THE INDIANA CODE
AS A NEW CHAPTER TO READ AS FOLLOWS [EFFECTIVE
JULY 1, 2026]:

Chapter 31.5. Prohibition of Street Camping

Sec. 1. (a) A person may not camp on, sleep on, or use for long
term shelter land owned by the state or a political subdivision,
unless the land has been authorized for that use by law.

(b) If a person violates subsection (a), the law enforcement
officer who discovers the violation shall first determine if there are



1 reasonable grounds for an emergency detention of the person. If
 2 there are reasonable grounds for an emergency detention, the law
 3 enforcement officer shall proceed under IC 12-26-5 and not this
 4 chapter.

5 (c) If:

- 6 (1) a person violates subsection (a);
- 7 (2) the person has not previously violated subsection (a); and
- 8 (3) subsection (b) does not apply;

9 the law enforcement officer who discovers the violation shall first
 10 give the person a warning and provide the person with information
 11 regarding locations authorized by law to provide services or
 12 shelter.

13 (d) A person who knowingly or intentionally violates subsection
 14 (a) commits street camping, a Class C misdemeanor, if:

- 15 (1) subsection (b) does not apply;
- 16 (2) the person has received a warning under subsection (c);
- 17 (3) at least forty-eight (48) hours have elapsed since the
 18 warning was issued; and
- 19 (4) the person is camping or sleeping on, or using for long
 20 term shelter, land owned by the state or a political subdivision
 21 that is located within a three hundred (300) foot radius of the
 22 location where the warning under subsection (c) was issued.

23 (e) A person charged with an offense under subsection (d) is
 24 eligible to participate in a diversion program, including:

- 25 (1) a prosecutorial diversion program under IC 33-39-1-8; or
- 26 (2) a forensic diversion program under IC 11-12-3.7.

27 Sec. 2. The court may refer a person charged with an offense
 28 under section 1 of this chapter for evaluation and treatment under
 29 IC 33-23-18-6.

30 Sec. 3. (a) A political subdivision shall not adopt or enforce any
 31 policy under which the political subdivision prohibits or
 32 discourages the enforcement of any order or ordinance prohibiting
 33 public camping, sleeping, or other obstruction of a sidewalk.

34 (b) In compliance with subsection (a), a political subdivision
 35 shall not prohibit or discourage a law enforcement officer who is
 36 employed by or otherwise under the direction or control of the
 37 political subdivision from enforcing any order or ordinance
 38 prohibiting public camping, sleeping, or other obstruction of a
 39 sidewalk.

40 Sec. 4. Not later than March 1 of each year, each local law
 41 enforcement agency shall provide to the state police department
 42 the number of citations issued and arrests made for violations of



1 section 1 of this chapter by the law enforcement agency during the
2 preceding calendar year.

3 Sec. 5. (a) Subject to subsection (b), this chapter does not
4 prohibit a policy, program, or order of a political subdivision that:

5 (1) encourages a diversion program; or

6 (2) encourages or requires providing housing or shelter
7 services in lieu of a citation or arrest.

8 (b) A policy, program, or order described in subsection (a) may
9 not allow a person to remain in the area described in section 1(c)(3)
10 of this chapter beyond the forty-eight (48) hour period of time after
11 receiving a warning under section 1(b) of this chapter.



COMMITTEE REPORT

Mr. President: The Senate Committee on Judiciary, to which was referred Senate Bill No. 285, has had the same under consideration and begs leave to report the same back to the Senate with the recommendation that said bill be AMENDED as follows:

Page 2, line 26, delete "twenty-four (24)" and insert "**forty-eight (48)**".

Page 2, line 40, after "officer" delete "or".

Page 2, line 41, delete "prosecuting attorney".

and when so amended that said bill do pass.

(Reference is to SB 285 as introduced.)

CARRASCO, Chairperson

Committee Vote: Yeas 8, Nays 2.

 SENATE MOTION

Mr. President: I move that Senate Bill 285 be amended to read as follows:

Page 2, line 20, delete "offer to transport the person to a" and insert "**provide the person with information regarding locations authorized by law to provide services or shelter.**".

Page 2, delete lines 21 through 22.

Page 2, delete lines 23 through 28, begin a new paragraph and insert:

"(c) A person who knowingly or intentionally violates subsection (a) commits street camping, a Class C misdemeanor, if:

- (1) the person has received a warning under subsection (b);**
- (2) at least forty-eight (48) hours have elapsed since the warning was issued; and**
- (3) the person is camping or sleeping on, or using for long term shelter, land owned by the state or a political subdivision that is located within a three hundred (300) foot radius of the location where the warning under subsection (b) was issued."**

Page 2, line 30, delete "including a forensic" and insert "**including:**

- (1) a prosecutorial diversion program under IC 33-39-1-8; or**
- (2) a forensic diversion program under IC 11-12-3.7."**

Page 2, delete line 31, begin a new paragraph and insert:

ES 285—LS 7097/DI 147



"(e) If a law enforcement officer has reasonable grounds to believe that a person is either dangerous or gravely disabled, and is in immediate need of hospitalization and treatment, an officer may initiate emergency detention procedures under IC 12-26-5."

Page 3, line 14, after "number of" insert "citations issued and".

Page 3, delete lines 17 through 19, begin a new paragraph and insert:

"Sec. 5. (a) Subject to subsection (b), this chapter does not prohibit a policy, program, or order of a political subdivision that:

- (1) encourages a diversion program; or**
- (2) encourages or requires providing housing or shelter services in lieu of a citation or arrest.**

(b) A policy, program, or order described in subsection (a) may not allow a person to remain in the area described in section (1)(c)(3) of this chapter beyond the forty-eight (48) hour period of time after receiving a warning under section (1)(b) of this chapter."

(Reference is to SB 285 as printed January 16, 2026.)

CARRASCO

COMMITTEE REPORT

Mr. Speaker: Your Committee on Courts and Criminal Code, to which was referred Senate Bill 285, has had the same under consideration and begs leave to report the same back to the House with the recommendation that said bill be amended as follows:

Page 1, line 6, delete "Part".

Page 1, line 9, delete "Part".

Page 2, between lines 2 and 3, begin a new paragraph and insert:

"SECTION 3. IC 12-26-1-1, AS AMENDED BY P.L.205-2023, SECTION 5, IS AMENDED TO READ AS FOLLOWS [EFFECTIVE JULY 1, 2026]: Sec. 1. (a) As used in this section, "gravely disabled" means a condition in which an individual, as a result of mental illness, is in danger of coming to harm because the individual:

- (1) is unable to provide for the individual's food, clothing, shelter, or other essential human needs; or**
- (2) has a substantial impairment or an obvious deterioration of judgment, reasoning, or behavior that results in the individual being unable to function independently; or**

ES 285—LS 7097/DI 147



(3) lacks a fixed, regular, and adequate shelter, resulting in the individual remaining outdoors in places not designed for or ordinarily used for sleeping during weather conditions that are likely to result in death or serious physical injury, if:

(A) the individual has refused transportation to a shelter or mental health service provider; and

(B) a shelter or mental health service provider was reasonably offered and available.

(b) An individual who is mentally ill and either dangerous or gravely disabled may be involuntarily detained or committed under any of the following statutes:

(1) IC 12-26-5 (emergency detention).

(2) IC 12-26-6 (temporary commitment).

(3) IC 12-26-7 (regular commitment)."

Page 2, line 13, delete "camp, sleep," and insert "**camp on, sleep on,**".

Page 2, delete lines 16 through 39, begin a new paragraph, and insert:

"(b) If a person violates subsection (a), the law enforcement officer who discovers the violation shall first determine if there are reasonable grounds for an emergency detention of the person. If there are reasonable grounds for an emergency detention, the law enforcement officer shall proceed under IC 12-26-5 and not this chapter.

(c) If:

(1) a person violates subsection (a);

(2) the person has not previously violated subsection (a); and

(3) subsection (b) does not apply;

the law enforcement officer who discovers the violation shall first give the person a warning and provide the person with information regarding locations authorized by law to provide services or shelter.

(d) A person who knowingly or intentionally violates subsection (a) commits street camping, a Class C misdemeanor, if:

(1) subsection (b) does not apply;

(2) the person has received a warning under subsection (c);

(3) at least forty-eight (48) hours have elapsed since the warning was issued; and

(4) the person is camping or sleeping on, or using for long term shelter, land owned by the state or a political subdivision that is located within a three hundred (300) foot radius of the location where the warning under subsection (c) was issued.



(e) A person charged with an offense under subsection (d) is eligible to participate in a diversion program, including:

- (1) a prosecutorial diversion program under IC 33-39-1-8; or**
- (2) a forensic diversion program under IC 11-12-3.7."**

Page 3, delete lines 11 through 19.

Page 3, line 32, delete "(1)(c)(3)" and insert "**1(c)(3)**".

Page 3, line 33, delete "(1)(b)" and insert "**1(b)**".

Renumber all SECTIONS consecutively.

and when so amended that said bill do pass.

(Reference is to SB 285 as reprinted January 27, 2026.)

MCNAMARA

Committee Vote: yeas 8, nays 5.

